

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALONZO GRANT and ALONZO PENDLETON,

Plaintiffs,

- against -

THE CITY OF NEW YORK, UMAR KHITAB,
JONATHAN MARTINEZ, BRIAN FEELEY,
and MATTHEW FAGAN,

Defendants.

-----X

Index No.

Plaintiffs designate
Kings County as
place of trial.

The basis of the
venue is the
location of
occurrence.

S U M M O N S

Plaintiffs reside at:

ALONZO GRANT
105 Willis Ave., Apt. 5C
Bronx, NY 10454

County of Bronx

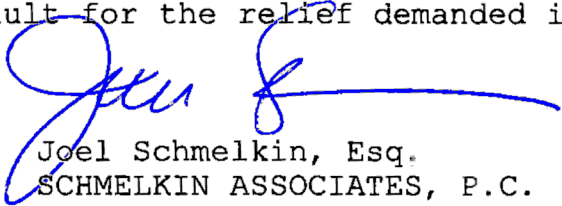
ALONZO PENDLETON
105 Willis Ave., Apt. 5C
Bronx, NY 10454

To the above named defendant(s):

County of Bronx

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 1, 2020


Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs
ALONZO GRANT and ALONZO PENDLETON
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007
UMAR KHITAB, c/o: 77th Precinct, 127 Utica Ave, Brooklyn, NY 11213
JONATHAN MARTINEZ, c/o: 77th Precinct, 127 Utica Ave, Brooklyn, NY 11213
BRIAN FEELEY, c/o: 77th Precinct, 127 Utica Ave, Brooklyn, NY 11213
MATTHEW FAGAN, c/o: 77th Precinct, 127 Utica Ave, Brooklyn, NY 1121

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALONZO GRANT and ALONZO PENDLETON,

Index No.

Plaintiffs,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, UMAR KHITAB,
JONATHAN MARTINEZ, BRIAN FEELEY,
and MATTHEW FAGAN

Defendants.

-----X
Plaintiffs, complaining of the defendants, by their
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

**PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF ALONZO GRANT**

1. That, on October 15, 2019, the plaintiff, **ALONZO GRANT**, was a resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **UMAR KHITAB** (hereinafter referred to as "**KHITAB**"), was and still is a resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **JONATHAN MARTINEZ** (hereinafter referred to as "**MARTINEZ**"), was and still is a resident of the City and State of New York.

5. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **BRIAN FEELEY** (hereinafter referred to as "**FEELEY**"), was and still is a resident of the City and State of New York.

6. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **MATTHEW FAGAN** (hereinafter referred to as "**FAGAN**"), was and still is a resident of the City and State of New York.

7. That, the plaintiff, **ALONZO GRANT**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on December 20, 2019, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **ALONZO GRANT**, testified at an oral examination pursuant to the General Municipal Law on November 5, 2020; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

8. That on October 15, 2019, the plaintiff, **ALONZO GRANT**

was on the premises known as 193 Albany Avenue, in the County of Kings, City and State of New York.

9. That the plaintiff **ALONZO GRANT** was woken up by the defendant and/or the defendant, and/or their police officers, who entered the bedroom, in plain clothes with their weapons drawn.

10. That the aforementioned defendant and/or defendant and/or police officers, did not show a warrant to the plaintiff **ALONZO GRANT**, and had entered and searched the aforementioned premises without permission.

11. That the aforementioned police officers, and/or other agents, servants, and/or employees of the defendant and/or defendants had remained in the premises for approximately 45 minutes, and did not allow the plaintiff **ALONZO GRANT** to leave, and had ultimately placed handcuffs on him, which were extraordinary and unusually tight causing him great physical pain.

12. That the plaintiff **ALONZO GRANT** was taken by the police officers and/or other agents, servants, and/or employees of the defendant and/or defendants, to the 77th precinct, in a police vehicle, which was against his will.

13. That the plaintiff **ALONZO GRANT** told the aforementioned police officers, that he needed his medication, and the police officers would not allow him to take his medicine with him, when they held him under their custody and control and against his will.

14. While at the aforementioned 77th precinct, the plaintiff **ALONZO GRANT** was placed in a cell, and questioned by the defendant and/or defendants, for a long and unreasonable period of time.

15. That the plaintiff **ALONZO GRANT** was advised that the aforementioned police officers, and/or other agents, servants, and/or employees of the defendant and/or defendants, had found drugs and guns in the aforementioned premises, of which the plaintiff **ALONZO GRANT** denied any such knowledge, and further denied possession of any such item alleged to have been found.

16. That the plaintiff, **ALONZO GRANT**, was thereafter taken by the defendants, their agents, servants and/or employees to Central Booking, in the County of Kings, City and State of New York.

17. That the plaintiff, **ALONZO GRANT**, was thereafter caused to appear in criminal court, on several occasions wherein all charges against him were resolved in his favor.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALONZO GRANT
Assault and Battery

18. That, the plaintiff, **ALONZO GRANT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 17 with the same force and effect as if hereinafter more fully set forth at length herein.

19. That, the assault/battery took place within the premises known as 193 Albany Avenue, in the County of Kings, City

and State of New York, and other locations wherein the plaintiff, **ALONZO GRANT** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

20. That, at all times hereinafter mentioned and on October 15, 2019 and for sometime prior thereto, defendant, **KHITAB**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

21. That, at all times hereinafter mentioned and on October 15, 2019, and for sometime prior thereto, defendant, **MARTINEZ**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

22. That, at all times hereinafter mentioned and on October 15, 2019, and for sometime prior thereto, defendant, **FEELEY**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

23. That, at all times hereinafter mentioned and on October 15, 2019, and for sometime prior thereto, defendant, **FAGAN**, was a New York City police officer, and/or agent servant and/or

employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

24. That, the aforementioned incident and assault/battery of the plaintiff, **ALONZO GRANT**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

25. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

26. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALONZO GRANT
(Negligent Hiring, Retention,
Training and Supervision)

28. That, the plaintiff, **ALONZO GRANT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 27 with the same force and effect as if hereinafter more fully set forth at length herein.

29. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

30. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

31. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **KHITAB**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

32. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the

defendant, **MARTINEZ**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **FEELEY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **FAGAN**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **KHITAB**, who was employed by the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MARTINEZ**, who was employed by the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **FEELEY**, who was employed by the defendant, **THE CITY**.

38. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **FAGAN**, who was employed by the defendant, **THE CITY**.

39. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

40. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

41. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, has sustained damages in an amount in excess of the

jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALONZO GRANT
(False Arrest and
False Imprisonment)

42. That the plaintiff, **ALONZO GRANT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 41 with the same force and effect as if hereinafter more fully set forth at length herein.

43. That, on October 15, 2019, the plaintiff, **ALONZO GRANT**, was caused to be falsely arrested and falsely imprisoned without probable cause.

44. That, the plaintiff, **ALONZO GRANT**, was arrested without an arrest warrant.

45. That, the false arrest/false imprisonment took place in the hallway of premises known as 193 Albany Avenue, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **ALONZO GRANT**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO GRANT**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

47. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO GRANT**, was carried out by defendant, **KHITAB**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

48. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO GRANT**, was carried out by defendant, **MARTINEZ**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

49. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO GRANT**, was carried out by defendant, **FEELEY**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

50. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO GRANT**, was carried out by defendant, **FAGAN**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

51. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was

unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

52. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

53. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALONZO GRANT
(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

54. The plaintiff, **ALONZO GRANT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraph 1 through 53, with the same force and effect as if hereinafter more fully set forth at length herein.

55. That the plaintiff, **ALONZO GRANT**, did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth

Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

56. That at all times hereinafter mentioned, the defendant, **KHITAB**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

57. That at all times hereinafter mentioned, the defendant, **MARTINEZ**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

58. That at all times hereinafter mentioned, the defendant, **FEELEY**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

59. That at all times hereinafter mentioned, the defendant, **FAGAN**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his

official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

60. Defendants, **KHITAB, MARTINEZ, FEELEY and FAGAN** are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

61. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **ALONZO GRANT**, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **ALONZO GRANT** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **ALONZO GRANT** to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States;

and the right of plaintiff, **ALONZO GRANT** not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

62. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

63. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

64. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

65. That the deprivation of plaintiff, **ALONZO GRANT** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

66. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

67. That the detaining of plaintiff, **ALONZO GRANT** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

68. That the deprivation of plaintiff, **ALONZO GRANT's**, Constitutional Rights was the result of the defendant, **KHITAB'S** arrest of the plaintiff, **ALONZO GRANT**, without probable cause.

69. That the deprivation of plaintiff, **ALONZO GRANT'S** Constitutional Rights was the result of the defendant, **MARTINEZ'S** arrest of the plaintiff, **ALONZO GRANT**, without probable cause.

70. That the deprivation of plaintiff, **ALONZO GRANT's** Constitutional Rights was the result of the defendant, **FEELEY'S** arrest of the plaintiff, **ALONZO GRANT**, without probable cause.

71. That the deprivation of plaintiff, **ALONZO GRANT's** Constitutional Rights was the result of the defendant, **FAGAN'S** arrest of the plaintiff, **ALONZO GRANT**, without probable cause.

72. That the deprivation of plaintiff, **ALONZO GRANT's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

73. That the deprivation of plaintiff, **ALONZO GRANT's** Constitutional Rights was the result of **KHITAB's** use of excessive force.

74. That the deprivation of plaintiff, **ALONZO GRANT's** Constitutional Rights was the result of **MARTINEZ's** use of excessive force.

75. That the deprivation of plaintiff, **ALONZO GRANT's** Constitutional Rights was the result of **FEELEY's** use of excessive

force.

76. That the deprivation of plaintiff, **ALONZO GRANT's** Constitutional Rights was the result of **FAGAN's** use of excessive force.

77. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **ALONZO GRANT**.

78. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **ALONZO GRANT** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

79. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

80. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

81. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
(Intentional Infliction of
Emotional Distress)

82. That the plaintiff, **ALONZO GRANT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 81 with the same force and effect as if hereinafter more fully set forth at length herein.

83. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **ALONZO GRANT**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights a guaranteed by the laws and Constitution of the State

of New York.

84. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the defendant **THE CITY**, which is therefore responsible for their conduct.

87. The defendant **THE CITY**, were the employers of the police officer defendant, and/or other defendants, and are responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

89. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and

effect.

90. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

91. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
(Negligent Infliction of
Emotional Distress)

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **ALONZO GRANT**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common

law rights a guaranteed by the laws and Constitution of the State of New York.

94. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

95. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the defendant, **THE CITY**, which is therefore responsible for their conduct.

97. The defendant **THE CITY**, were the employers of the police officer defendant and/or other defendants, and are responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

99. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon

information and belief, his injuries are permanent in nature and effect.

100. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

101. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Failure to Intervene)

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. That the defendants that did not physically touch plaintiff, but were present when other police officers, and/or other defendants, violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by police officers, and/or other agents, servants, and/or employees of the defendants.

104. Defendants failed to intervene to prevent the unlawful conduct described herein.

105. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints, and other personal injuries.

106. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York, and/or under the Constitution of the United States of America under 42 U.S.C. §1983.

107. The individual defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which is therefore responsible for their conduct.

108. The defendant **THE CITY**, as the employers of the defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of the defendants, plaintiff sustained emotional personal and/or physical injuries, including but not limited to psychological injuries.

110. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon

information and belief, his injuries are permanent in nature and effect.

111. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

112. That, by reason of the foregoing, the plaintiff, **ALONZO GRANT** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

**PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF ALONZO PENDLETON**

113. That, the plaintiff, **ALONZO PENDLETON** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 112 with the same force and effect as if hereinafter more fully set forth at length herein.

114. That, and on October 15, 2019, the plaintiff, **ALONZO PENDLETON**, was a resident of the County of Kings, City and State of New York.

115. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

116. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **KHITAB**, was and still is a resident of the City and State of New York.

117. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **MARTINEZ**, was and still is a resident of the City and State of New York.

118. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **FEELEY**, was and still is a resident of the City and State of New York.

119. That, at all times hereinafter mentioned, and on October 15, 2019 the defendant, **FAGAN**, was and still is a resident of the City and State of New York.

120. That, the plaintiff, **ALONZO PENDLETON**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on December 20, 2019, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **ALONZO PENDLETON**, testified, at an oral examination, on November 5, 2020; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

121. That on October 15, 2019, the plaintiff, **ALONZO**

PENDLETON was a guest at premises known as 193 Albany Avenue, in the County of Kings, City and State of New York, and was asleep at approximately 6:00 A.M.

122. That the plaintiff **ALONZO PENDLETON** was awakened by various police officers, and/or other agents, servant, and/or employees of the defendant and/or defendants, who had jumped on him, attacked him and put him in handcuffs, against his will and without justification, and without probable cause.

123. That these aforementioned individuals, and/or other agents, servants, and employees of the defendant and/or defendants and/or plainclothes police officers, had their weapons drawn.

124. That the plaintiff **ALONZO PENDLETON** was arrested by the aforementioned defendant and/or defendants and, he remained in handcuffs and was removed from the aforementioned premises.

125. That the plaintiff **ALONZO PENDLETON** asked where he was going and what was going on, and the aforementioned defendant and/or defendants had refused to advise him, why he was being arrested, or where he was going to be taken to.

126. That the plaintiff **ALONZO PENDLETON** was placed in a police vehicle, and driven to the 77th precinct, where he was placed in a cell, and held for a long and unreasonable period of time, against his will, and was not shown any paperwork nor a warrant for their actions.

127. That the plaintiff **ALONZO PENDLETON** was questioned, was never told why he was arrested, but was told that the officers had allegedly found drugs and a firearm in the apartment where the plaintiff **ALONZO PENDLETON** had been sleeping.

128. That the plaintiff **ALONZO PENDLETON** stated that he had no knowledge nor possession of any such item that was allegedly found.

129. That the plaintiff, **ALONZO PENDLETON**, was thereafter taken by the defendants, their agents, servants and/or employees to Central Booking, in the County of Kings, City and State of New York.

130. That the plaintiff, **ALONZO PENDLETON**, was thereafter caused to appear in criminal court, on several occasions wherein all charges against him were resolved in his favor.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALONZO PENDLETON
Assault and Battery

131. That, the plaintiff, **ALONZO PENDLETON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 100 with the same force and effect as if hereinafter more fully set forth at length herein.

132. That, on October 15, 2019 the plaintiff, **ALONZO PENDLETON**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

133. That, the above assault/battery took place within the premises known as 193 Albany Avenue, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **ALONZO PENDLETON**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

134. That, at all times hereinafter mentioned and on October 15, 2019 and for sometime prior thereto, defendant, **KHITAB**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

135. That, at all times hereinafter mentioned and on October 15, 2019, and for sometime prior thereto, defendant, **MARTINEZ**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

136. That, at all times hereinafter mentioned and on October 15, 2019, and for sometime prior thereto, defendant, **FEELEY**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

137. That, at all times hereinafter mentioned and on October 15, 2019, and for sometime prior thereto, defendant, **FAGAN**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

138. That, the aforementioned assault and battery of the plaintiff, **ALONZO PENDLETON**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

139. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

140. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

141. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of

New York.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALONZO PENDLETON

(Negligent Hiring, Retention,
Training and Supervision)

142. That, the plaintiff, **ALONZO PENDLETON** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 141 with the same force and effect as if hereinafter more fully set forth at length herein.

143. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

144. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

145. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **KHITAB**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

146. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **MARTINEZ**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

147. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **FEELEY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

148. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **FAGAN**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

149. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **KHITAB**, who was employed by the defendant, **THE CITY**.

150. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MARTINEZ**, who was employed by the defendant, **THE CITY**.

151. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **FEELEY**, who was employed by the defendant, **THE CITY**.

152. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **FAGAN**, who was employed by the defendant, **THE CITY**.

153. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

154. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

155. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALONZO PENDLETON
(False Arrest and
False Imprisonment)

156. That the plaintiff, **ALONZO PENDLETON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 155 with the same force and effect as if hereinafter more fully set forth at length herein.

157. That, on October 15, 2019, the plaintiff, **ALONZO PENDLETON**, was caused to be falsely arrested and falsely imprisoned without probable cause.

158. That, the plaintiff, **ALONZO PENDLETON**, was arrested without an arrest warrant.

159. That, the false arrest/false imprisonment took place within the premises known as 193 Albany Avenue, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **ALONZO PENDLETON**, was held against his will

by the defendant and/or defendants, their agents, servants and/or employees.

160. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO PENDLETON**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

161. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO PENDLETON**, was carried out by defendant, **KHITAB**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

162. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO PENDLETON**, was carried out by defendant, **MARTINEZ**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

163. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO PENDLETON**, was carried out by defendant, **FEELEY**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

164. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ALONZO PENDLETON**, was carried out by defendant, **FAGAN**, and/or other servants, agents and/or

employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

165. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

166. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

167. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALONZO PENDLETON
(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

168. The plaintiff, **ALONZO PENDLETON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 167, with the same force and effect as if hereinafter more fully set forth at length herein.

169. That the plaintiff, **ALONZO PENDLETON**, did not

commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

170. That at all times hereinafter mentioned, the defendant, **KHITAB**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

171. That at all times hereinafter mentioned, the defendant, **MARTINEZ**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

172. That at all times hereinafter mentioned, the defendant, **FEELEY**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the

defendant, **THE CITY**.

173. That at all times hereinafter mentioned, the defendant, **FAGAN**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

174. Defendants, **KHITAB**, **MARTINEZ**, **FEELEY** and **FAGAN** are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

175. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **ALONZO PENDLETON**, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **ALONZO PENDLETON** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States;

the right of plaintiff, **ALONZO PENDLETON**, to be informed of the nature and cause of the accusation against her as secured to his under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **ALONZO PENDLETON**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

176. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

177. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

178. That the deprivation of plaintiff, **ALONZO PENDLETON's** Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

179. That the deprivation of plaintiff, **ALONZO PENDLETON** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting without probable cause.

180. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions

that have been brought against the defendant, **THE CITY**.

181. That the detaining of plaintiff, **ALONZO PENDLETON** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

182. That the deprivation of plaintiff, **ALONZO PENDLETON** Constitutional Rights was the result of the defendant, **KHITAB'S** arrest of the plaintiff, **ALONZO PENDLETON**, without probable cause.

183. That the deprivation of plaintiff, **ALONZO PENDLETON'S** Constitutional Rights was the result of the defendant, **MARTINEZ'S** arrest of the plaintiff, **ALONZO PENDLETON**, without probable cause.

184. That the deprivation of plaintiff, **ALONZO PENDLETON'S** Constitutional Rights was the result of the defendant, **FEELEY'S** arrest of the plaintiff, **ALONZO PENDLETON**, without probable cause.

185. That the deprivation of plaintiff, **ALONZO PENDLETON'S** Constitutional Rights was the result of the defendant, **FAGAN'S** arrest of the plaintiff, **ALONZO PENDLETON**, without probable cause.

186. That the deprivation of plaintiff, **ALONZO PENDLETON'S** Constitutional Rights was a result of the defendant, **THE CITY'S** custom and policy in failing to discipline officers for the use of excessive force.

187. That the deprivation of plaintiff, **ALONZO**

PENDLETON's Constitutional Rights was the result of KHITAB's use of excessive force.

188. That the deprivation of plaintiff, ALONZO PENDLETON's Constitutional Rights was the result of MARTINEZ's use of excessive force.

189. That the deprivation of plaintiff, ALONZO PENDLETON's Constitutional Rights was the result of FEELEY's use of excessive force.

190. That the deprivation of plaintiff, ALONZO PENDLETON's Constitutional Rights was the result of FAGAN's use of excessive force.

191. That the customs and/or policies adopted by the defendant, THE CITY exhibited a deliberate indifference to the Constitutional rights of plaintiff, ALONZO PENDLETON.

192. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, ALONZO PENDLETON was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth

under 42 U.S.C. Section 1983.

193. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

194. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

195. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Intentional Infliction of
Emotional Distress)

196. That the plaintiff, **ALONZO PENDLETON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 195 with the same force and effect as if hereinafter more fully set forth at length herein.

197. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable in a

civilized community, which intentionally caused severe emotional distress to plaintiff, **ALONZO PENDLETON**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights a guaranteed by the laws and Constitution of the State of New York.

198. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

199. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

200. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the defendant **THE CITY**, which is therefore responsible for their conduct.

201. The defendant **THE CITY**, were the employers of the police officer defendant, and/or other defendants, and are responsible for their wrongdoing under the doctrine of *respondeat superior*.

202. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

203. That, by reason of the foregoing, the plaintiff,

ALONZO PENDLETON, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

204. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

205. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

(Negligent Infliction of
Emotional Distress)

206. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 205 with the same force and effect as if more fully set forth at length herein.

207. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **ALONZO PENDLETON**. The acts and conduct of

the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights a guaranteed by the laws and Constitution of the State of New York.

208. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

209. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

210. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the defendant, **THE CITY**, which is therefore responsible for their conduct.

211. The defendant **THE CITY**, were the employers of the police officer defendant and/or other defendants, and are responsible for their wrongdoing under the doctrine of *respondeat superior*.

212. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

213. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo treatment and

advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

214. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

215. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Failure to Intervene)

216. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 215 with the same force and effect as if more fully set forth at length herein.

217. That the defendants that did not physically touch plaintiff, but were present when other police officers, and/or other defendants, violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by police officers, and/or other agents, servants, and/or employees of the defendants.

218. Defendants failed to intervene to prevent the

unlawful conduct described herein.

219. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints, and other personal injuries.

220. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York, and/or under the Constitution of the United States of America under 42 U.S.C. §1983.

221. The individual defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which is therefore responsible for their conduct.

222. The defendant **THE CITY**, as the employers of the defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

223. As a result of the aforementioned conduct of the defendants, plaintiff sustained emotional personal and/or physical injuries, including but not limited to psychological injuries.

224. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

225. That this action falls within one or more of the

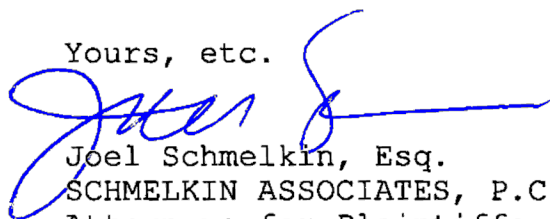
exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

226. That, by reason of the foregoing, the plaintiff, **ALONZO PENDLETON** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **ALONZO GRANT**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York as well as the costs, disbursement and legal fees pursuant to 42 U.S.C. Section 1988 of these causes of action; and plaintiff, **ALONZO PENDLETON** demands judgment against the defendants, on the Eighth, Ninth, Tenth, Eleventh, Twelfth, Thirteenth and Fourteenth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
December 1, 2020

Yours, etc.



Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs,
ALONZO GRANT AND ALONZO PENDLETON
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

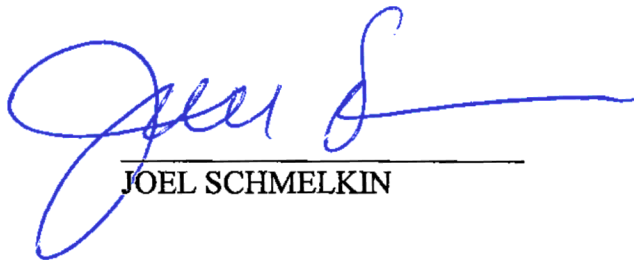
ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York
December 1, 2020



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALONZO GRANT and ALONZO PENDLETON,

Plaintiffs,

-against-

THE CITY OF NEW YORK, UMAR KHITAB,
JONATHAN MARTINEZ, BRIAN FEELEY, and
MATTHEW FAGAN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Alonzo Grant & Alonzo Pendleton
Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR
NEW YORK, N.Y. 10007
TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: December 1, 2020

Signature

Print Signer's Name

Service of a copy of the within

JOEL SCHMELKIN

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

50 of 50

Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR